



EAGLE MOUNTAIN CITY COUNCIL MEETING MINUTES

April 19, 2022, 4:00 p.m.
Eagle Mountain City Council Chambers
1650 East Stagecoach Run, Eagle Mountain, Utah 84005

4:00 P.M. WORK SESSION – CITY COUNCIL CHAMBERS

ELECTED OFFICIALS PRESENT: Mayor Tom Westmoreland, Councilmembers Donna Burnham, Colby Curtis, Jared Gray, Carolyn Love, and Brett Wright.

CITY STAFF PRESENT: Robert Hobbs, Planning Manager; Tayler Jensen, Senior Planner; Senior Planner; Fionnuala Kofoed, Director of Administrative Services/City Recorder; Chris Trusty, City Engineer; Jeremy Cook, City Attorney; Kimberly Ruesch, Finance Director; Brad Hickman, Parks and Recreation Director; Zac Hilton, Streets and Storm Drain Manager; Tyler Maffitt, Communications Manager; Angela Valenzuela, Human Resource Manager; Eric McDowell, Chief Deputy Sheriff; Evan Berrett, Assistant to the City Administrator.

CITY STAFF PRESENT ELECTRONICALLY: Paul Jerome, City Administrator; Steve Mumford, Assistant City Administrator/Community Development Director; Aaron Sanborn, Economic Development Director; Mack Straw, Public Utilities Manager; Jeff Weber, Fleet and Facilities/Operations Director; Michele Graves, Library Director; Embret Fossum, UFA Battalion Chief; and Chas Glenn, Administrative Assistant.

Mayor Westmoreland called the meeting to order at 4:09 p.m.

1. CITY ADMINISTRATOR INFORMATION ITEMS

1.A. UPDATE – City Administrator Items

None.

1.B. DISCUSSION – Strategic Planning

Assistant to the City Administrator Evan Berrett presented the item and reviewed the processes and methods of collecting Council feedback used to determine the following proposed strategic goals for the City to be finalized at a future meeting:

1. Diverse Economic Growth,
2. Robust Infrastructure Networks,
3. Unique Reputational Evolution,
4. Proactive Generational Planning,
5. Interactive Environmental Stewardship, and
6. Dynamic Service Enhancements.

Councilmember Love expressed her support of the proposal; however, she thinks some of the details of the goals fit better in a different category. She suggested moving medical needs from

Proactive Generational Planning to Diverse Economic Growth as it falls under having close, in-demand access for residents. She would like to add cultural and branding considerations for the City to goal three and feels highly-responsive government and communication should fall under goal six.

Councilmember Burnham said she appreciates the goals representing the priorities of the individual Councilmembers and agrees with Councilmember Love regarding rearranging the detailed items for some of the goals.

Councilmember Curtis expressed concern about the difficulty in measuring and quantifying the success of implementing the goals and ensuring the objectives meet the intent.

Councilmember Gray noted the difficulty in evaluating the goals separately from the implementation strategies to comprehend impacts and expressed concern about manipulating resident behavior. He recommended hiring a lobbyist or intern to represent City interests at the State level.

Councilmember Wright expressed concern with some of the verbiage used but was in favor of defining and promoting the uniqueness of Eagle Mountain.

Mr. Berrett explained the intent is to create reasonable objectives to achieve the goals. The strategic planning conference will allow the Council to provide feedback in a forum separate from budget considerations. The department heads will create objectives from the strategic goals which will be difficult should the Council elect to change the goals. Goals are intended to be enabling, enhancing, and supportive of objectives rather than to be restrictive in nature.

City Administrator Paul Jerome requested for the Councilmembers to make their desired adjustments to the goals to facilitate staff creating objectives in harmony with the intents and desires of the Council.

Discussion ensued regarding the following:

- Balancing being respectful to State needs while preserving the unique characteristics and needs of the City;
- Clearly defining and setting expectations for housing types;
- Removing the term “affordable housing” from the goals due to concerns with the ambiguity and conflicting definitions of the term;
- Providing housing to accommodate economic diversity and all stages of life;
- Creating opportunities for homeownership;
- The desire for a lobbyist to represent City interests; and
- Concern and a desire to further clarify goal verbiage including the words affordable, accessible, community center, and close.

Mayor Westmoreland stated the City has set aside funds to hire a lobbyist.

1.C. UPDATE – Budget

This item was discussed during the policy session following item 15.A.

Finance Director Kimberly Ruesch presented the item.

Discussion ensued regarding the following Sewer Fund and Wastewater Fund Capital Projects not discussed during the April 12, 2022 Budget Work Session meeting due to time constraints:

- The effluent disposal project will enable the City to reuse Type 1 water for dust control, landscape watering, or other uses.
- The treatment building upgrade and lab equipment will allow the City to test samples onsite and provide real-time data. The current procedure of the samples being sent to and processed by a third-party lab causes a week delay for results which could prove detrimental. A more-efficient system reduces the number of times the water needs to be purified.
- The wastewater grounds improvement project will provide access to the site from the north lost by the sale of the adjacent property to increase safety, provide space and a second bathroom for additional employees, and address the drainage issues. It was recommended to add landscape improvements to the plan.
- The culinary well for Unity Pass requires an additional \$3,000,000 to be completed and the allocated \$2,000,000 will roll over with the project to future budgets until it is finished.
- Impacts fees must be spent within six years of being received or the funds must be refunded or reallocated to other qualifying projects. The City Council must authorize the cancellation of a project and the reallocation of funds.
- Staff explained:
 - The location, spacing, distribution, and capacity needs of City wells,
 - The impact on the aquifers of adding additional wells,
 - Methods to collect drawdown data for the wells,
 - A study regarding the removal of algae from the reuse systems is ongoing,
 - Possible collaborative funding efforts for secondary water, a
 - Impact fee calculations,
 - State regulations for metering reused water to provide data,
 - Meeting usage demands, and
 - Secondary water meter reimbursement opportunities.
- The purpose of additional wells is to both meet growth demands and provide redundancy in the system for inevitable well failures.
- The next steps are for the City Council to prioritize and rank the projects; review the personnel requests from the funding committee with consideration of meeting certification requirements, department revenue generation, and hiring timeframes; and the tentative budget approval process.

2. AGENDA REVIEW

10. AGREEMENTS

10.A. Insurance Renewal Agreement – MotivHealth

Human Resource Manager Angela Valenzuela verified that 90 employees are currently enrolled in the City's benefit plan. Some employees select full insurance coverage and other employees elected to utilize only certain insurance options such as vision.

13. PRELIMINARY PLATS & SITE PLANS

13.A. MOTION – Eagle Quest East Preliminary Plat

Councilmember Wright inquired if the phasing for the project would be addressed during a future review. He noted that the parks are being developed in Phases 1 and 4 and the larger lots are listed in the later phases of the project. He recognized the smaller lots may assist with funding the larger lots.

Senior Planner Tayler Jensen explained that phasing is generally addressed during the master development agreement (MDA); however, as the proposed phasing follows infrastructure development, the phasing in the MDA will likely be similar.

Councilmember Curtis stated the inclusion of a park in Phase 1 alleviates some of his phasing concerns with the project.

14. RESOLUTIONS

14.A. RESOLUTION – A Resolution of Eagle Mountain City, Utah, Appointing a Member Representative to the North Utah Valley Animal Services Special Service District Board.

Councilmembers Love and Curtis requested clarification regarding the position.

Director of Administrative Services/City Recorder Fionnuala Kofoed clarified the City has been a participant for several years and the board seat is generally filled by the City Treasurer. Currently, the majority of the board members are appointed city staff members; occasionally, elected officials will serve as board members. Treasurer Tara Freeman has indicated that she is happy to have the experience, learn, and represent the City.

14.B. RESOLUTION – A Resolution of Eagle Mountain City, Utah, Approving the 2022 Amended and Restated Sewer Treatment Services Contract and Collection Maintenance Agreement Between the Timpanogos Special Service District and Eagle Mountain City.

Public Utilities Manager Mack Straw explained the purpose of the amendment is to place all the member cities on the same timeline to facilitate financing and bond negotiations.

City Attorney Jeremy Cook stated he evaluated the contract and his only concern is the ambiguity regarding the allocation of resources should the City elect not to renew the contract at the expiration of the 25-year term. However, as the City lacks the resources to leave the district, it is unlikely that the contract would not be renewed. He verified that Mr. Straw serves on the board

with members of the other communities and acts as a representative to ensure that costs and salaries are reasonably contained.

14.C. RESOLUTION – A Resolution of Eagle Mountain City, Utah, Authorizing and Approving a Preliminary Official Statement and an Official Statement in Connection with the Issuance and Sale of the City's Sale Tax Revenue Bonds, Series 2022; Authorizing the Taking of all other Actions Necessary to the Consummation of the Transactions Contemplated by this Resolution; and Related Matters.

Finance Director Kimberly Ruesch verified the bond amount in the preliminary official statement allows the bond to be reviewed and purchased at the bondholder level. The final amount can fluctuate up to the set maximum of \$25,000,000 until the City closes on the bond.

Discussion ensued regarding the ability to delay but not expedite the bond timeline to adapt to market and bond rate fluctuations, impacts and adaptations, and school district bond options.

14.D. RESOLUTION – A Resolution of Eagle Mountain City, Utah, Establishing Fireworks Restrictions for 2022.

Mayor Westmoreland stated his discussions with Unified Fire Authority (UFA) representatives indicated that other cities have determined to put in place firework plans and hold city-sponsored events.

Ms. Kofoed explained the fireworks restriction map has been updated with new developments. Areas currently being developed are at a higher risk for fire danger. She recommended adding designated locations for residents in a restricted area to be able to ignite their fireworks at parks or in parking lots. UFA Battalion Chief Embret Fossum had indicated they are less concerned this year than last year with firework danger; however, it is the purview of the Council to set firework restrictions.

Mr. Cook clarified the intent of the firework restriction map is to prohibit fireworks in areas adjacent to open space with combustible natural materials and allow fireworks in internal neighborhoods.

Councilmember Curtis noted the difficulty in the task and the desire to assure the restrictions are not arbitrary to promote fairness. He asked if developments with previously firework restrictions that are now fully built have been removed from the restricted area on the map.

Mr. Fossum explained historical data of previous fires is a component in determining area restrictions. Neighborhoods under heavy construction increase fire danger. Until the City is fully developed, fire restrictions will continue to subdivide parts of the City which complicates enforcement. The City Council may determine if a subdivision has been built out sufficiently to be removed from the restricted zone. The restrictions passed with this resolution will be provided to firework vendors and it will be difficult to lessen the restrictions at a future date. However, a clause allows for further restrictions in the cases of emergencies or hazardous conditions.

Ms. Kofoed stated one of the reasons firework restrictions need to be determined at this time is to enable firework vendors to plan appropriately when ordering firework inventory.

Discussion ensued regarding the following:

- New development areas;
- The difficulty in setting and understanding the restricted areas;
- Possibly setting specific firework igniting areas in the City such as Cory Wride Memorial Park;
- Setting and explaining the metrics to residents;
- Possibly codifying permanent restrictions for foothill and agricultural zones;
- State restrictions prohibit igniting fireworks in mountainous, brush-covered, forest-covered, or dry grass-covered areas within 200 feet of a waterway, trail, canyon, wash, ravine, or other similar area or the wild line urban interface area;
- Firework restrictions facilitate negligence charges;
- Information efforts to notify residents of liability for fires caused by their fireworks; and
- The inability to add a clause to restrict fireworks-based upon wind and weather conditions.

Mayor Westmoreland recommended removing the item from the consent agenda and adding it as a regularly scheduled item.

15.A. ORDINANCE/PUBLIC HEARING – An Ordinance of Eagle Mountain City, Utah, Amending the Eagle Mountain Municipal Code Chapter 17.80 Sign Regulations and Sign Permits.

Mr. Jensen presented the item. The applicant-proposed development code amendment would allow for electronic message centers/reader boards in commercial zones for businesses and in residential and agricultural zones for schools and institutions. The Eagle Mountain Planning Commission voted 4 to 0, with one commissioner excused, to recommend denial. The Planning Commission felt the request went against the character of the City and recommended for the applicant to withdraw the application rather than presenting it to the City Council.

Councilmember Curtis verified with staff that allowing electronic reader boards for schools was due to the inability of the City from prohibiting them. He recommended the inclusion of verbiage in Municipal Code to clarify the City is required to allow electronic reader boards for schools.

Mr. Jensen clarified that school reader boards had been added to Municipal Code enabled the City to limit the scope of the project.

Mr. Cook noted that the City's electronic reader board excludes commercial advertising and is informational and nonprofit in nature. Electronic sign companies will offer to post emergency information; however, the majority of the time the sign would be used for advertising.

Discussion ensued regarding possible lobbying efforts by sign and billboard companies and the likelihood of opposition from multiple cities, the negative impacts on quality of life and safety due to electronic billboards, and the ways other cities have allowed or limited electronic signage.

3. ADJOURN TO A CLOSED EXECUTIVE SESSION

No closed session was held. Mayor Westmoreland adjourned the work session at 6:13 p.m.

7:00 P.M. POLICY SESSION – CITY COUNCIL CHAMBERS

ELECTED OFFICIALS PRESENT: Mayor Tom Westmoreland, Councilmembers Donna Burnham, Colby Curtis, Jared Gray, Carolyn Love, and Brett Wright.

CITY STAFF PRESENT: Robert Hobbs, Planning Manager; Tayler Jensen, Senior Planner; Fionnuala Kofoed, Director of Administrative Services/City Recorder; Chris Trusty, City Engineer; Jeremy Cook, City Attorney; Kimberly Ruesch, Finance Director; Brad Hickman, Parks and Recreation Director; Jeff Weber, Fleet and Facilities/Operations Director; Angela Valenzuela, Human Resource Manager; Michele Graves, Library Director; Embret Fossum, UFA Battalion Chief; Eric McDowell, Chief Deputy Sheriff; and Evan Berrett, Assistant to the City Administrator.

CITY STAFF PRESENT ELECTRONICALLY: Paul Jerome, City Administrator; Steve Mumford, Assistant City Administrator/Community Development Director; Aaron Sanborn, Economic Development Director; Mack Straw, Public Utilities Manager; and Tyler Maffitt, Communications Manager.

4. CALL TO ORDER

Mayor Westmoreland called the policy session to order at 7:12 p.m.

5. PLEDGE OF ALLEGIANCE

Councilmember Curtis led the Pledge of Allegiance.

6. INFORMATION ITEMS/UPCOMING EVENTS

- The City's Annual Community Cleanup will take place this Saturday, April 23rd. Volunteers will meet at Cory Wride Memorial Park at 10:00 a.m. and break off into individual assignments. Those interested in participating can sign up by visiting Eagle Mountain City on social media or by visiting eaglemountaincity.com.
- The Great Utah Shakeout will be held this Thursday, April 21st. Eagle Mountain residents are encouraged to drop underneath their desk or a table at 10:15 a.m. for 60 seconds and consider earthquake safety. The Great Utah Shakeout is designed to teach residents to drop, cover, and hold on. Sign up for Earthquake tips by texting UTAHQUAKE to 43362.
- Eagle Mountain City wants to remind residents, especially new residents, that the Tooele Army Depot south range will be conducting blast operations most weekdays, weather depending, through the month of October. These blasts are designed to properly dispose of munitions that are considered expired by the military.

To receive City notifications, including emergency info, news events, and traffic alerts, sign up at emcity.org/notifyme.

7. PUBLIC COMMENTS

Mayor Westmoreland opened public comment at 7:15 p.m.

Heather Beck requested signage in Cedar Pass Ranch to increase pedestrian and equestrian safety and for the stub road to Deer Haven to be removed.

Bettina Cameron spoke on behalf of the Eagle Mountain Nature and Wildlife Alliance and thanked City staff and Councilmembers Gray and Wright for assisting in halting activities on the dirt road connecting to Cedar Drive referenced by Ms. Beck. She requested for the Wildlife Corridor Overlay to be updated and to enact notification processes to prevent other miscommunications and misunderstandings with development within the corridor, for the destruction that has occurred to be repaired, and for a barrier and signage to be installed to impede and discourage side by side access.

Mayor Westmoreland closed public comment at 7:24 p.m.

8. CITY COUNCIL/MAYOR'S ITEMS

Councilmember Gray

Councilmember Gray commended Streets and Storm Drain Manager Zac Hilton for leading by example by assisting with tumbleweed removal and disposal efforts. He expressed appreciation to the meeting participants and to staff and the Council for their willingness to respond quickly to resolve and address unpopular issues in the best interests of the City.

Councilmember Wright

Councilmember Wright thanked the residents for taking an active part in the community and helping improve the City. He is grateful to the Mayor for his direction and support. He appreciates the responsiveness of City staff.

Councilmember Love

Councilmember Love welcomed the meeting participants.

Councilmember Burnham

Councilmember Burnham acknowledged the number of awards received by Eagle Mountain staff members. She recognized the difficulties faced by City employees and lauded their efforts and hard work.

Councilmember Curtis

Councilmember Curtis encouraged staff to reach out to their supervisors to voice frustrations and concerns to allow the Council to assist with remedying situations.

Mayor Westmoreland

Mayor Westmoreland noted that Eagle Mountain City is not afraid to address difficult circumstances. Representatives from the Division of Wildlife visited to observe City practices to preserve open space and protect wildlife.

9. RECOGNITION

- 9.A. Outstanding Adaptive Program for Adaptive Trick-or-Treating – Presented by Bronco Hunter of UPRA

Utah Recreation and Parks Association Board of Directors Member Bronco Hunter said that Eagle Mountain is a leader in the State in providing adaptive programs for individuals with special needs and presented Dawn Hancock and Suzie McCorristin with an award for Innovative Program of the Year for adaptive programs.

CONSENT AGENDA

10. AGREEMENTS

- 10.A. Insurance Renewal Agreement – MotivHealth

11. BOND RELEASES

- 11.A. Harmony Phase A, Plat 11 – Out of Warranty

12. MINUTES

- 12.A. April 5, 2022 – Regular City Council Meeting

13. PRELIMINARY PLATS & SITE PLANS

- 13.A. MOTION – Eagle Quest East Preliminary Plat

14. RESOLUTIONS

- 14.A. RESOLUTION – A Resolution of Eagle Mountain City, Utah, Appointing a Member Representative to the North Utah Valley Animal Services Special Service District Board.
- 14.B. RESOLUTION – A Resolution of Eagle Mountain City, Utah, Approving the 2022 Amended and Restated Sewer Treatment Services Contract and Collection Maintenance Agreement Between the Timpanogos Special Service District and Eagle Mountain City.
- 14.C. RESOLUTION – A Resolution of Eagle Mountain City, Utah, Authorizing and Approving a Preliminary Official Statement and an Official Statement in

Connection with the Issuance and Sale of the City's Sale Tax Revenue Bonds, Series 2022; Authorizing the Taking of all other Actions Necessary to the Consummation of the Transactions Contemplated by this Resolution; and Related Matters.

14.D. RESOLUTION – A Resolution of Eagle Mountain City, Utah, Establishing Fireworks Restrictions for 2022.

14.E. RESOLUTION – A Resolution of Eagle Mountain City, Utah, Appointing Mayor Tom Westmoreland as a Member Representative to the Boards of the Unified Fire Service Area and the Unified Fire Authority.

MOTION: *Councilmember Gray moved to approve the consent agenda removing item 14.D. and placing it as a scheduled item. Councilmember Curtis seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Absent</i>
☒ Donna Burnham	☐ Donna Burnham	☐ Donna Burnham
☒ Colby Curtis	☐ Colby Curtis	☐ Colby Curtis
☒ Jared Gray	☐ Jared Gray	☐ Jared Gray
☒ Carolyn Love	☐ Carolyn Love	☐ Carolyn Love
☒ Brett Wright	☐ Brett Wright	☐ Brett Wright

The motion passed with a unanimous vote.

SCHEDULED ITEMS

14.D. RESOLUTION – A Resolution of Eagle Mountain City, Utah, Establishing Fireworks Restrictions for 2022.

Mayor Westmoreland noted the difficulty in defining firework restrictions to protect residents and the City due to the unique characteristics and abundance of natural open spaces areas. Unified Fire Authority (UFA) representatives have provided input in determining firework restrictions. High wind and weather also impact fire safety.

Mr. Cook verified the City can only prohibit geographical boundaries and may not include weather restrictions in the prohibitions.

Councilmember Curtis recommended employing an informational campaign to educate residents concerning aerial firework dangers and weather impacts.

Councilmember Love requested to review the prohibited locations to verify the reasonability of the restriction to ensure identical standards were applied to all areas.

Councilmember Wright suggested approving the item with direction to staff to further evaluate Brandon Park, Sage Park, and Evans Ranch to determine if the subdivisions have a central area deemed safe for fireworks.

Director of Administrative Services/City Recorder Fionnuala Kofoed explained firework restrictions are required to be provided to the County by May 1st.

UFA Battalion Chief Embret Fossum stated that his understanding is that the restrictions must be set prior to May 1st and cannot be amended afterward other than circumstances qualifying for the emergency clause.

Mr. Cook explained Utah Code 15A-5-202 is an amendment to International Fire Code and cities must be in compliance with both documents when setting fire restrictions.

Discussion ensued regarding the following:

- The clarification that the proposed map is based upon staff and UFA recommendations and it is the purview of the Council to remove or add restricted areas;
- Natural landscape and framed houses in neighborhoods undergoing construction increase fire hazards;
- Enforcement and confusion with approved location considerations;
- Restrictions assisting with establishing resident liability;
- Historical data used as consideration for the restriction map may no longer be relevant if the characteristics of the region have changed;
- Salt Lake City restricts fireworks in all areas east of 1300 East;
- Scheduling to evaluate the map in-depth prior to the approval of restrictions for 2023;
- Pursuing the City offering alternative forms of celebration;
- The desire to establish uniform standards;
- Law Enforcement discretion when issuing citations and liability restitution; and
- Codifying permanently allowed and restricted areas and perimeter standards.

Councilmember Love recommended including clarification that residents are liable for fire damage regardless of igniting fireworks in an allowed or prohibited area.

Councilmember Wright believes the 2019 map has negative impacts on some residents. Nevertheless, the recommended restrictions represent a plan with previously vetted developments that has been implemented in the past and would allow the item to move forward within the requisite timeframe. He feels passionately that the proposed map should be reviewed in-depth and updated prior to approving firework restriction areas for 2023. He encouraged residents to be responsible and not ignite fireworks in restricted areas due to the high fire dangers.

Ms. Kofoed suggested permitting fireworks at completed park parking lots within the restricted developments if deemed appropriate by staff. She explained that staff had been operating under the assumption that fireworks would be restricted City-wide this year until they received notification from UFA desiring an updated map.

Councilmember Curtis stated he had made potential amendments to the firework restrictions map to allow fireworks in some subdivisions. Councilmember Gray inquired if any of the areas include livestock. Councilmember Burnham expressed concern with areas potentially having large lots with highly combustible natural open space.

Discussion ensued regarding opening City park parking lots to residents for fireworks uses, clarifying that church parking lots are private property and should not be used for fireworks, and providing information to the public to promote safety.

MOTION: *Councilmember Gray moved to approve a resolution of Eagle Mountain City, Utah, establishing fireworks restrictions for 2022 using the map in the staff report and authorizing City staff to designate City park locations in any restricted area as approved firework ignition sites. Councilmember Burnham seconded the motion.*

Those Voting Yes

☒ ***Donna Burnham***
☒ ***Colby Curtis***
☒ ***Jared Gray***
☒ ***Carolyn Love***
☒ ***Brett Wright***

Those Voting No

☐ ***Donna Burnham***
☐ ***Colby Curtis***
☐ ***Jared Gray***
☐ ***Carolyn Love***
☐ ***Brett Wright***

Those Absent

☐ ***Donna Burnham***
☐ ***Colby Curtis***
☐ ***Jared Gray***
☐ ***Carolyn Love***
☐ ***Brett Wright***

The motion passed with a unanimous vote.

Mayor Westmoreland requested for Mr. Cook to draft a Municipal Code amendment permitting residents to hold alternative holiday celebrations for the July holidays.

Mr. Jerome stated that staff is exploring options for a City-sponsored July holiday event.

15. ORDINANCES/PUBLIC HEARINGS

15.A. ORDINANCE/PUBLIC HEARING – An Ordinance of Eagle Mountain City, Utah, Amending the Eagle Mountain Municipal Code Chapter 17.80 Sign Regulations and Sign Permits.

Mr. Jensen reviewed the item as presented during work session.

Applicant Dustin Aldridge owner of Available Self Storage said he and his wife and co-owner are requesting an amendment to Municipal Code sign regulations because they feel it will benefit Eagle Mountain City business owners. They would be willing to post emergency messages and City events on the electronic reader boards, as well, to be contributing members of the community.

Applicant Alyvia Timothy with Creative Sign and Graphics explained their company applied for the permit on behalf of the Aldridges because they are the only Utah-State contracted sign provider and supply signs for government entities. She said electronic reader boards would support the opportunity for businesses to provide information about the products and services they offer. She

cited studies that concluded reader boards increase sales and are one of the most cost-effective forms of advertising. Their suggested amendment, as recommended by their attorneys, proposes the same electronic reader board standards for commercial users as currently codified for schools and the City including prohibited moving or flashing images. She also proposed requiring a minimum hold time requirement for each slide. The City illumination requirement is about 200 nits, which is 100 nits lower than recommended illumination levels of the National Sign Association. They are not proposing a change to the illumination level standards and signs can be set to dim or turn off automatically. Where the City and schools have electronic reader boards, she encouraged the Council to also allow them for businesses. She clarified that her name is on the application; however, the Aldridges would be the owners of the sign and the amendment would not require businesses to use Creative Sign and Graphics' services. She had a study with data available regarding electronic signs' minimal impacts on drivers.

Discussion ensued regarding the City's dark sky ordinance and methods for the City's electronic reader board to comply with the standards.

Mr. Aldridge explained that sign installation cost is over \$50,000 but the low impression price and quantity would benefit their business. He thinks allowing signs will promote business growth. Should the application be denied, they would put in a monument sign.

Mayor Westmoreland opened the public hearing at 8:49 p.m. As there were no comments, he closed the hearing.

Councilmember Curtis clarified that the City lacks regulator authority over the schools including discretion about the installation of the electronic reader boards. He had expressed concern during the discussion regarding the approval of an electronic reader board for the City, that businesses would use the sign as an argument to allow electronic signs for general business uses. However, the City's sign is never used to display for-profit or advertising messages. He is worried about compliance and conflict with the dark sky's ordinance.

Councilmember Gray stated he appreciates Ms. Timothy's passion; however, some things work for some cities and not for others. He is glad Mr. Aldridge recognized he has other signage options. Although he desires to support businesses, he does not feel that electronic signs are necessary to attract or promote business interests.

MOTION: *Councilmember Gray moved to deny an ordinance of Eagle Mountain City, Utah amending the Eagle Mountain Municipal Code Chapter 17.80 Sign Regulations and Sign Permits. Councilmember Curtis seconded the motion.*

Those Voting Yes
☒ ***Donna Burnham***
☒ ***Colby Curtis***
☒ ***Jared Gray***
☒ ***Carolyn Love***
☒ ***Brett Wright***

Those Voting No
☐ ***Donna Burnham***
☐ ***Colby Curtis***
☐ ***Jared Gray***
☐ ***Carolyn Love***
☐ ***Brett Wright***

Those Absent
☐ ***Donna Burnham***
☐ ***Colby Curtis***
☐ ***Jared Gray***
☐ ***Carolyn Love***
☐ ***Brett Wright***

The motion passed with a unanimous vote.

16. CITY COUNCIL/MAYOR'S BUSINESS

Mayor Westmoreland

Mayor Westmoreland noted the positive economic impact the improvements to the bike park have on local businesses.

Councilmember Gray

Councilmember Gray expressed concern about the Eagle Mountain homeless problem and recommended considering the issue when discussing affordable housing funding allocation. He suggested possibly spending extra bond funding, if available, to install the City's portion of the right-of-way for a secondary access to the Lone Tree subdivision. He requested to review and clarify Municipal Code firework restriction standards.

Discussion ensued regarding the affordable housing plan currently in process that will be presented to the Council, options for providing a secondary access for the Lone Tree subdivision, the funding of road projects to meet growth, and City and State firework restrictions requirements and statutes.

The other Councilmembers expressed support for the request to review Municipal Code firework standards.

Councilmember Curtis

Councilmember Curtis requested a discussion to rank legislative priorities. Councilmember Love supported the request.

17. CITY COUNCIL BOARD LIAISON REPORTS

Councilmember Curtis

None.

Councilmember Burnham

None.

Councilmember Love

None.

Councilmember Wright

Councilmember Wright said the Parks and Recreation Advisory Board has a vacancy. He thanked Meta and Maverik for their willingness to make contributions to help fund the bike park. The 2021-2022 Scholarship deadline for applications for Youth Council members and participants is May 12th. The application deadline for Youth Council elections for 2022-2023 is May 5th. Be Ready Eagle Mountain held CPR training on April 14th and will hold CERT training on April 23rd and 30th.

Councilmember Gray

Councilmember Gray said he has not been receiving the emails for the development review committee meetings and requested to be added to the list.

18. COMMUNICATION ITEMS

18.A. Upcoming Agenda Items

19. ADJOURNMENT

MOTION: *Councilmember Curtis moved to adjourn the meeting at 10:20 p.m.
Councilmember Burnham seconded the motion.*

Those Voting Yes

☒ *Donna Burnham*

☒ *Colby Curtis*

☒ *Jared Gray*

☒ *Carolyn Love*

☒ *Brett Wright*

Those Voting No

☐ *Donna Burnham*

☐ *Colby Curtis*

☐ *Jared Gray*

☐ *Carolyn Love*

☐ *Brett Wright*

Those Absent

☐ *Donna Burnham*

☐ *Colby Curtis*

☐ *Jared Gray*

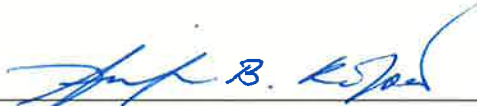
☐ *Carolyn Love*

☐ *Brett Wright*

The motion passed with a unanimous vote.

The meeting was adjourned at 10:20 p.m.

Approved by the City Council on May 3, 2022.


Fionnuala B. Kofoed, MMC
City Recorder

